Importantly, by holding FECA's political-party coordinated-expenditure restrictions unconstitutional, the Court's decision today treats all political parties equally. It will allow all political parties—including the DNC and RNC and the respective Senate and House campaign committees, as well as other parties and party committees—to participate more freely and compete more fully in the political process, and to coordinate more closely with their candidates. Whether the Democratic party, the Republican party, or other parties, all political parties and candidates going forward can compete equally under the same rules regarding coordinated expenditures and can structure their fundraising, spending, and political speech on a level playing field as they see fit within the law.

We reverse the judgment of the U. S. Court of Appeals for the Sixth Circuit and remand the case for further proceedings consistent with this opinion.

It is so ordered.

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JUSTICE KAGAN, with whom JUSTICE SOTOMAYOR and JUSTICE JACKSON join, dissenting.

For over half a century, a federal statute has guarded against actual and apparent *quid pro quo* corruption in our political system by limiting the amount of money a donor can contribute to a candidate. The law's theory is simple: A candidate may be induced to trade official acts for campaign contributions—and the bigger the contribution, the stronger both the candidate's temptation and the public's suspicion.

The same statute also prevents circumvention of the contribution limits by capping political parties' "coordinated expenditures" with candidates. When a party makes such a coordinated expenditure, it essentially pays the candidate's bills—stepping up to fund something the candidate would otherwise have to. Without limits on those expenditures, a candidate could ask a donor to make a substantial contribu-

tion to the party so as to finance his own campaign expenses. It would then be as though the candidate contribution limits did not exist: The donor could give far more to the party than to the candidate directly, understanding that the money would be passed through to the candidate. And with that evasion of contribution limits, all the old opportunities for *quid pro quo* deals would come back into play. So Congress, sensibly enough, limited parties' coordinated expenditures. By thus preventing circumvention of the basic contribution limits, Congress protected those limits' capacity to suppress corruption.

But today, the Court rewrites the rules, to allow circumvention of the contribution limits. The majority invalidates Congress's restriction of coordinated expenditures, thus enabling a party to serve as an alternative checking account for a campaign. As a result, a donor will be able to give a party as much as half a million dollars (as compared to the $7,000 he can give directly to the candidate) to cover the candidate's bills. And the candidate can seek just such a donation. So the Court ushers back in the same opportunities for *quid pro quo* corruption that the contribution limits were meant to check.

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Contra the majority, nothing in the First Amendment mandates that outcome—as indeed this Court has held before. The First Amendment permits campaign finance restrictions that are narrowly tailored to protect against *quid pro quo* corruption and its appearance. Caps on a party's coordinated expenditures pass that test with flying colors. The caps prevent easy circumvention of contribution limits; and so the former, as much as the latter, are needed to avert corrupt deals between candidates and their supporters. That is not my personal theory. It is (now was) the Court's. Twenty-five years ago, in a case called *Colorado II*, the Court considered—and rejected—the same arguments it finds irresistible today. See *Federal Election Comm'n* v. *Colorado Republican Federal Campaign Comm.*, 533 U. S.

431 (2001). The majority must overrule *Colorado II* to arrive at its outcome—so, once again, disregards and disrespects the core legal principle of *stare decisis*. But there is a yet more important point here for the American political system: that the majority, also again, jettisons a rule needed to protect our democracy's integrity. With respect, I dissent.

I

A

Soon after the 1972 presidential elections, Congress set out to strengthen the Federal Election Campaign Act in response to recent revelations of *quid pro quo* corruption. One apparent exchange of campaign contributions for a public-policy favor loomed especially large. As told by the Senate Watergate Committee, the deal involved price supports for milk, worth many millions of dollars to the Nation's dairy industry. See Final Report of the Select Committee on Presidential Campaign Activities, S. Rep. No. 93–981, pp. 623, 680 (1974). Originally, the Nixon administration had decided, after lengthy deliberation, not to increase the subsidies. See *id.*, at 622, 633. But following a meeting with industry leaders, the President had a change of heart. He told his top aides to convey to the dairymen the "need to reaffirm their $2 million pledge" to his campaign "as a condition for the public announcement of [a milk subsidy] increase." *Id.*, at 648, 682; see also *id.*, at 642–643 (describing the milk producers' subsequent "middle-of-the-night rendezvous" to arrange for immediate "commitments of substantial financial contributions"). "The dairymen agreed, the announcement was made," and "the promised contributions began to flow." *Id.*, at 682. When Congress resolved, a few years later, to amend the campaign finance laws, its "primary purpose" was to prevent such "*quid pro quo* corruption and its appearance." *McCutcheon* v. *Federal Election Comm'n*, 572 U. S. 185, 197 (2014) (plurality opinion). The object was

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to shut down the "opportunities for abuse" associated with big campaign donations. *Buckley* v. *Valeo*, 424 U. S. 1, 27 (1976) (*per curiam*).

At the heart of the 1974 reforms were so-called "base limits"—caps on the maximum amount any donor can give to a candidate's campaign. The idea behind those limits is clear-cut. In a world where campaigning for office is expensive, candidates need financial contributions—and the bigger, the better. To get large contributions, they may be willing to return public-policy concessions—a decision or a vote on some matter of governance. And even when that does not occur, the public can see that it might—that the incentives and opportunities are there for buying and selling policy outcomes. So Congress set strict base limits to protect both "the integrity of" and public "confidence in" our "system of representative Government." *Id.*, at 26–27. In 1974, the limit was $1,000 per election. See *id.*, at 26. Today, that limit is $3,500—or $7,000 if you count the primary and general elections together. See FEC, Contribution Limits for 2025–2026 (Jan. 30, 2025) (https://perma.cc/57Q5-PYKG).

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This Court has long recognized that those base limits comply with the First Amendment. Preventing *quid pro quo* corruption and its appearance is an important—indeed, a "compelling"—government interest. *McCutcheon*, 572 U. S., at 199; see *Buckley*, 424 U. S., at 25–27. And the base limits are "closely drawn" to further that interest. *Id.*, at 25. They "focus[ ] precisely on the problem of large campaign contributions," while leaving supporters of candidates free to engage in other political activity (including small donations). *Id.*, at 28. The limits thus target the "aspect" of political life most capable of creating "the actuality and potential for corruption." *Ibid.*

And to protect the base limits from easy evasion, the Court has recognized, further regulations may also be permissible. See *McCutcheon*, 572 U. S., at 222–223; *McCon-*

nell v. *Federal Election Comm'n*, 540 U. S. 93, 171–173 (2003); *Buckley*, 424 U. S., at 46–47. Again, the idea is straightforward. If a donor can circumvent the base limits through some type of routing mechanism, the limits will lose all their efficacy: They will become unable to prevent actual and apparent *quid pro quo* corruption. So to the extent that a campaign finance law is appropriately "tailored to the Government's interest in preventing circumvention of the base limits," it will satisfy constitutional scrutiny. *McCutcheon*, 572 U. S., at 218. Today's majority reaffirms that point. See *ante*, at 937. For example, it describes "earmarking rules" (of which more later) as a "constitutionally permissible way for the Government to prohibit circumvention of the base limits on contributions to candidates." *Ante*, at 927 (citing *McCutcheon*, 572 U. S., at 222–223). Our difference concerns only—though this is no small "only"—whether the Government's strong interest in preventing circumvention of the base limits also justifies the coordinated-expenditure caps at issue here.

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B

The anti-circumvention principle just noted should resolve this case in favor of the caps' constitutionality. A contribution limit of $7,000 will do no good if a donor can use a political party as a conduit to give the candidate hundreds of thousands more. Congress sought to prevent that kind of evasion through the limits on a party's coordinated expenditures; and those limits are well-tailored to the statutory mission. That is all the First Amendment demands— which is why this Court upheld the same restriction against the same challenge 25 years ago in *Colorado II*.[1]

[1] Contrary to the majority's framing, see *ante*, at 925, the question here (which, to repeat, we have answered before) is not whether the caps on a party's coordinated expenditures are permissible to "prevent circumvention of the base limits" via contributions to a party that are "earmarked (*i. e.*, directed) to a candidate." The question, instead, is whether the caps are permissible to prevent circumvention of the base limits *by*

Consider first the varied forms a coordinated expenditure may take. The majority offers one example, which is least harmful to its cause but not the standard fare. A party, it says, might wish to "spend money to produce and place a television advertisement in support of a candidate after consulting with the candidate's campaign about the content, timing, or placement of the advertisement." *Ante*, at 917. So it might—and in such a case the ad seems not terribly far removed from a party's independent speech on behalf of a candidate, which of course cannot be limited. See *ibid.* That is why the majority uses the example as its lead case. More typical, though, is what happened here: The candidate's campaign, on its own, produced a political advertisement, and sent the party the invoice after the fact. The party responded, "Received. Will process"—making clear that it is less a collaborative speaker than a simple piggy bank. 1 App. 202–203; 2 *id.*, at 481. And yet a third kind of party-coordinated expenditure does not involve advertising or other speech at all. A candidate, for example, might forward the bill from his pollster; or the rent or electricity bill for campaign headquarters; or the catering bill for a campaign event. So the political party is just helping the candidate pay any of his financial obligations. That is why *Colorado II* recognized that a party's coordinated expenditures, like those from individuals or non-party groups, can be "virtually indistinguishable" from direct contributions to a candidate. 533 U. S., at 444–445; see *id.*, at 467 (THOMAS, J., dissenting) (acknowledging the point).

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Because coordinated expenditures are "as useful to the candidate as cash," Congress has long recognized that, unless

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any means. It is the circumvention of the base limits that is the focus of the constitutional inquiry, regardless of the means by which that takes place. And as I will discuss later, the means by which donors can use parties to circumvent base limits (absent the caps) need not rely on earmarking at all. See *infra*, at 953–954.

regulated, they will undermine contribution limits. *Id.*, at 446 (majority opinion). Consider the matter first with respect to individual and non-party group donors (the latter meaning corporate and interest groups). There is no point to the $7,000 base limit if a deep-pocketed donor can spend hundreds of thousands more to pay for campaign expenses. So the campaign finance law treats coordinated expenditures by such donors as contributions—meaning, subject to the normal base limits. See 52 U. S. C. §30116(a)(7)(B). And this Court long ago upheld that rule, explaining that it "prevent[s] attempts to circumvent the Act through prearranged or coordinated expenditures amounting to disguised contributions." *Buckley*, 424 U. S., at 47. (The majority today does not touch that holding, see *ante*, at 936, n. 6, but a person attending to this Court's recent campaign finance decisions might reasonably beware.) Now turn to party-coordinated expenditures, where the rule is somewhat different because the problem is. The majority is right that cooperation between a party and its candidates is a generally fine thing. See *ante*, at 921–922. The issue arises when—and only when—the party functions as a funnel through which individuals and non-party groups can finance candidates, because then the party-mediated payments may give rise to the same corruption concerns as the donors' own payments would. So Congress provided parties with some, but strictly limited, capacity to make expenditures coordinated with their candidates. As the majority describes, the caps range from $65,300 for most House candidates to around $32 million for a presidential candidate. See *ante*, at 914; §30116(d). In Congress's view, anything more—and surely a regime with no limits—would introduce too much danger of *quid pro quo* deals between donors and candidates.

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To begin to see why Congress was right, it's essential to take a look under the hood of modern fundraising (something the majority never does). Let's imagine a candidate—call

him John Smith—running for President and seeking to raise as much money as he can.[2] Recall that under the current base limits, an individual donor can give Smith's campaign at most $7,000 for the primary and general elections. See *supra*, at 942. But Smith can potentially get much more out of that donor by raising money alongside his party—meaning both its national and state committees. To do so, he forms what is known as a "joint fundraising committee"—named, let's say, the John Smith Victory Fund—consisting of his own campaign committee, the national party committee (the RNC or DNC), and party committees from each of the 50 States (or close to it). Under the base limits applying to parties, a national committee can accept $44,300 from an individual donor, and a state committee can accept $10,000. See FEC, Contribution Limits for 2025–2026. The great advantage of a joint fundraising committee is that it can collect contributions on behalf of all 52 of its component committees via a single payment: The donor writes one check to the John Smith Victory Fund for the total amount he can contribute to all the committees. The numbers add up. Fifty times $10,000 (the state committee cap) is $500,000. And when the permitted contributions to the national committee ($44,300) and Smith's own campaign committee ($7,000) are added in, a single donor can cut a check to the John Smith Victory Fund for over $550,000 ($551,300, to be precise).

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The lion's share of that money typically gets pooled within short order in the national party committee's coffers. It

[2] Although I use a presidential candidate as an example, everything about the mechanism I am about to describe holds true for House and Senate candidates as well. Candidates for lower office can—and do—take advantage of this same fundraising tool. See Brief for Campaign Legal Center et al. as *Amici Curiae* 28–29. Of course, fundraising in campaigns for lower offices, as a practical matter, involves smaller dollar amounts than in presidential campaigns. But because a dollar goes further in a campaign for lower office, a donor can also secure a *quid pro quo* with less money. So the potential for corruption is, generally speaking, the same.

takes a couple of steps. First, the John Smith Victory Fund parcels the money out to its member committees, in accordance with the contribution limits. That means the national party gets $44,300, and the state parties each get $10,000. But then most state parties quickly transfer their $10,000 payment to the national party, sometimes the same day.[3] See § 30116(a)(4) (authorizing unlimited transfers between state and national committees of a political party). The upshot is that most of a big donor's $550,000 check to the John Smith Victory Fund soon ends up in the national party committee's hands. Then the key question becomes: What can the party do with that money?

Before today, the answer was: Many things, but very little to pay John Smith's campaign bills. Campaign finance law limits to a bare minimum ($5,000 per election) the amount a party can simply give to a candidate, so direct transfers are not an option. See § 30116(a)(2). Similarly, the caps on coordinated expenditures are set so low in comparison with a campaign's total expenses as to make that spending stream inconsequential. See *supra*, at 945; Brief for Federal Respondents 21 (noting, for example, that party-coordinated expenditures in House races have never exceeded 1% of total campaign spending). That means the overwhelming major-

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[3] See, *e. g.*, C. Levine, Soft Money Is Back, POLITICO, Aug. 4, 2017 ("[S]tate Republican parties transferred nearly every dollar they received from the Trump Victory Committee to the RNC"); K. Vogel & I. Arnsdorf, Clinton Fundraising Leaves Little for State Parties, POLITICO, May 2, 2016 (The vast majority of the millions that the Hillary Victory Fund gave state parties was "quickly transferred to the DNC, usually within a day or two"); K. Evers-Hillstrom, Trump Raised Record Money for State Parties, Then His RNC Took It Back, OpenSecrets, Feb. 24, 2021 ("On Oct. 15, the Alaska Republican Party received nearly $2.7 million from Trump Victory. The same day, it transferred the exact same sum back to the RNC"); *ibid.* ("The Nebraska Democratic Party transferred $4.3 million to the DNC on Oct. 22, one day after it received the exact same total from the Biden Victory Fund"); *ibid.* ("Dozens of state parties in deep red or blue states employed the exact same strategy").

ity of the contributions the John Smith Victory Fund collects—again, before today's decision—will go to party spending that only incidentally (even if meaningfully) benefits the candidate. The money may be spent, for example, on improving get-out-the-vote operations; covering the party's administrative costs; or supporting down-ballot candidates. Or else the money may be spent on independently produced advertisements. But what the money is not helpful for is funding John Smith's own campaign activities, of whatever kind.

Today, that constraint disappears. With no limits on coordinated expenditures, the party can serve as the candidate's checking account. It can pay for everything John Smith (or any other candidate) needs—advertising of course, but also more prosaic things like catering, rent, and utilities. See *supra*, at 944. So the party can take any or every one of those $550,000 checks it receives from the John Smith Victory Fund—which, recall, the Fund has received from an individual or a corporate or interest group—and convert the money (in full) into a direct benefit for the candidate. What is supposed to be just the sum of an individual or group's capped donations to 51 separate party committees instead goes in a single straight shot to John Smith, the candidate. And then that can happen again and again and again.

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It does not take much imagination to see how that scheme circumvents the contribution limit for a candidate, and raises the risk of both actual and apparent *quid pro quo* corruption. On a formal level, all base limits are complied with—$7,000 to the candidate, $10,000 each to state party committees, and $44,300 to the national one. Except that in the real world, the candidate can get all the money for his own campaign. So an ostensibly capped contribution of $7,000 becomes . . . a $550,000 contribution (again, $551,300 to be precise) to John Smith. And of course everyone knows this. The candidate recognizes both what the $550,000 contribution will do for him and where it originally came from. The donor under-

stands the main points too. His measly $7,000 was not likely to have bought from the candidate anything of consequence. But $550,000 is a whole different story. And even if John Smith and all his wealthy donors remain scrupulously above board, the public can see all the opportunities and incentives in the system for political corruption. At least apparent *quid pro quos* will be perceived all around. In short, as the political party becomes the conduit for oversized donations to a candidate, the constraints on actual and apparent corruption once offered by the base limits effectively disappear.

None of this is a new insight. (Indeed, to call it even an old insight is to understate its obviousness.) Some 25 years ago, this Court in *Colorado II* upheld limits on a party's coordinated expenditures against a First Amendment challenge identical to the one presented here. 533 U. S., at 465. And the Court did so on exactly the grounds I have laid out above—because "unlimited coordinated spending by a party raises the risk of corruption (and its appearance) through circumvention of valid contribution limits." *Id.*, at 456. In so holding, the Court recognized the strong role parties play in politics, and reaffirmed its holding that a party's independent expenditures could not constitutionally be limited. See *id.*, at 444. But the Court drew a sharp line between those expenditures and a party's coordinated ones, based on their value to the candidate's campaign. "[A] party's coordinated expenditure," we explained, was functionally the same as "a direct party contribution to the candidate." *Id.*, at 464. And because that was so, "a party's right of unlimited coordinated spending would attract increased contributions to parties" as a way for a donor to pass on funds to a potential office-holder. *Ibid.* With that predictable outcome, base "contribution limits would be eroded." *Id.*, at 457. And as those limits became more fictitious than real, the danger would grow of donors and candidates striking "*quid pro quo* agreements." *Id.*, at 441.

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The only real-world change that has happened since then is that the danger is now still larger. That is because, put simply, this Court has ensured that the numbers are still bigger. For years, campaign finance law imposed "aggregate limits" on the amount a donor could give to federal candidates and party committees in a two-year election cycle. In 2013-2014, for example, that limit was $123,200—far below the $551,300 payment described above. But in *McCutcheon* v. *Federal Election Comm'n*, this Court (true to form) invalidated the aggregate limit. 572 U. S., at 193. It is because of that change that a single donor, working through a joint fundraising committee, can now route as much as $551,300 to a single candidate. See *supra*, at 946. To permit that to happen, candidates from both parties have sought to make their joint committees as large as possible (a development the *McCutcheon* majority dismissed and the *McCutcheon* dissent foretold, see 572 U. S., at 214, 216; *id.*, at 247–248 (Breyer, J., dissenting)).[4] And with that structure in place, a donor now

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[4] The *McCutcheon* majority described as "divorced from reality"—and "foreclose[d]" by "experience and common sense"—the scenario of "a donor giv[ing] a $500,000 check to a joint fundraising committee composed of a candidate, a national party committee, and most of the party's state party committees." 572 U. S., at 214, 216. Tell that to candidate Kamala Harris, who had a joint fundraising committee (the Harris Victory Fund) consisting of her own campaign, the DNC, and 50 state party committees. Or to candidate Donald Trump, whose joint fundraising committee (the Trump 47 Committee, Inc.) included his own campaign, the RNC, and 48 state party committees. (He was missing Hawaii and Vermont.) As reflected in the FEC's online database, www.fec.gov/data, each of their joint fundraising committees received checks from multiple donors maxing out their party contributions, which after a pair of transfers wound up at the DNC or RNC. See *supra*, at 947, n. 3; FEC, Contributions to Harris Victory Fund (https://perma.cc/K8GB-WWGY); FEC, Disbursements of Harris Victory Fund (https://perma.cc/H3V4-DJVQ); FEC, Receipts of DNC (https://perma.cc/T93L-WVA7); FEC, Contributions to Trump 47 Committee, Inc. (https://perma.cc/R9CE-43QU); FEC, Disbursements of Trump 47 Committee, Inc. (https://perma.cc/2SSA-6XA4); FEC, Receipts of RNC (https://perma.cc/49P8-9BSN).

has at hand a mechanism to funnel to a candidate about 80 times what the base limits say should be the maximum. More than ever, then, caps on a party's coordinated expenditures are needed to stop *quid pro quo* corruption.

II

To overturn a precedent like *Colorado II*, this Court used to insist that a "special justification," above and beyond simple error, is needed. *E. g.*, *Halliburton Co.* v. *Erica P. John Fund, Inc.*, 573 U. S. 258, 266 (2014). *Stare decisis*, after all, "promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process." *Payne* v. *Tennessee*, 501 U. S. 808, 827 (1991). It also encourages judicial humility, which is all too often in short supply. Yet the majority could hardly be more dismissive of the "special justification" requirement for overruling precedent. See *ante*, at 933. The majority would much rather explain why it thinks settled law is wrong than go to the trouble of establishing what it should—an unusual need to start all over.

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So today's supposed *stare decisis* analysis mainly just recounts why the majority, had it been the majority in 2001, would have decided *Colorado II* differently. Almost to flaunt the point, the analysis gives pride of place to JUSTICE THOMAS's dissent in that case; if only the rest of the majority had been there to join him! See *ante*, at 933–934. Today's decision thus can join the parade of those recently overruling established law because of a new majority's new outlook on a consequential matter. Here, the subject is campaign finance law. See also *Citizens United* v. *Federal Election Comm'n*, 558 U. S. 310, 319 (2010) (overruling *Austin* v. *Michigan Chamber of Commerce*, 494 U. S. 652 (1990); overruling in part *McConnell*, 540 U. S., at 203–209); *McCutcheon*, 572 U. S., at 202, 204 (overruling in part *Buckley*, 424 U. S., at 38); cf. *Federal Election Comm'n* v. *Ted Cruz for Senate*, 596

U. S. 289, 313 (2022) (invalidating 52 U. S. C. § 30116(j)); *Davis* v. *Federal Election Comm'n*, 554 U. S. 724, 744 (2008) (invalidating § 30117). For those who think there is too much of it in this country—for those who would prefer even more money to be pumped even more easily into politics despite the danger of corruption—this overruling is for you.

The majority, to be sure, eventually proposes three changed circumstances (two legal, one factual) to support its holding—but none lives up to the billing. First, the majority contends that the *Colorado II* Court applied a standard of review more deferential than the one now used. See *ante*, at 934. But that is not so: *Colorado II* used the standard recognized as appropriate for the last 50 years. It asked "whether the restriction is 'closely drawn' to match what we have recognized as the 'sufficiently important' government interest in combating political corruption." 533 U. S., at 456; see *Buckley*, 424 U. S., at 25 (same); *McCutcheon*, 572 U. S., at 197 (same). In fact, even today's majority ends up using that standard. See *ante*, at 920 (noting that the difference between it and some supposedly different test is "subtle" and in the end "academic"). Second, the majority faults the *Colorado II* Court for recognizing "undue influence" as a form of political corruption. See *ante*, at 922–923, 937. And so it did, in a parenthetical in the opinion's background section, but not in any way that matters here: The Court's holding was explicitly and exclusively based on the risk that a party's coordinated expenditures pose the "danger" that money will be "given as a *quid pro quo* for improper commitments." *Colorado II*, 533 U. S., at 464.

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And third, the asserted factual change: the majority laments that "political parties' relative power has substantially diminished in comparison" to "Super PACs and other outside groups" that can "receive and spend unlimited money" on political campaigns. *Ante*, at 935; see *ibid.* ("*Colorado II* contributed in part to that shift"). But surely, that one is rich. If one is overruling—or just reversing—decisions on

that ground, I can think of a couple of more obvious ones—that is, the ones that created the modern Super PAC system, and thus the complained-of imbalance. See *Citizens United*, 558 U. S. 310; *SpeechNow.org* v. *Federal Election Comm'n*, 599 F. 3d 686 (CADC 2010) (en banc). In any event, the majority's new equilibrium theory—overrule *Colorado II* to restore the parties' proper role in American politics—is, shall we say, seat-of-the-pants. I suspect it will not be difficult in a decade or two to disprove the majority's view that what has been standing in the way of a fully functional party system is *Colorado II*.

But there is no need to belabor the majority's failures respecting *stare decisis* because today's decision is wrong even if the Court were appropriately starting from scratch. The challenge for the majority is to explain how to prevent circumvention of the base contribution limits without the limits on a party's coordinated expenditures in place. The majority takes some time to get around to that undertaking; it first wends its way through no less than three strawman arguments. See *ante*, at 921–923; see, *e. g.*, *ante*, at 921 ("[N]o one actually invokes or defends" such an argument). And one can see why the majority is stalling: Once it gets to the crucial question, it has no satisfying account to offer. The majority places all its hopes on two alternative "prophylactic measures": earmarking rules and disclosure requirements. *Ante*, at 931. But those two measures alone are insufficient to the task. Without caps as well, they can be thought enough only when taken with generous doses of either willful blindness or wishful thinking.

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Start with earmarking rules—both what they apply to and what they do not. As the majority explains, the law will treat a contribution to a party as instead a contribution to a candidate if the donor earmarks or otherwise directs the money in that direction. See *ante*, at 926. So if a donor giving money to a party says "I want you to send this on to John Smith," that money will count as a contribution to John

Smith, and will be subject to the base limit of $7,000 for donations to candidates. (Of course, that means the donor can only earmark funds up to $7,000.) But suppose the donor, with no such instruction, just sends a $550,000 check to the John Smith Victory Fund I have described above? That payment is, according to campaign finance law, all well and good: None of it counts as an earmark. So the mechanism I outlined above—the $550,000 is given to the Victory Fund, then gets disbursed to state party committees, then gets pooled in the national party committee, then is used to pay the candidate's bills—is entirely unaffected by earmarking rules. That means a donor, regardless of those rules, can pay $550,000 to support the candidate's campaign (despite the $7,000 base limit)—with all the opportunities for political corruption that such outsized donations raise.[5]

Perhaps the majority thinks (I am guessing here, given the majority's unwillingness to deal in the specifics of campaign finance) that no *quid pro quo* can occur in the above scenario because the $550,000 payment to the Victory Fund is unaccompanied by directions to use the money for the candidate. If so, that would be wrong. Suppose John Smith says to a donor: "If you give money to my Victory Fund, I will subsidize your latest venture" (or if John Smith were a Congressman, "I will vote to subsidize the venture"). And then the donor gives that money, without any earmark. That is a *quid pro quo*, pure and simple: The donor is making a requested payment to the candidate's joint fundraising committee in exchange for an official act. The donor does not need to say any earmarking words. In fact, he does not even need to understand the campaign finance plumbing that

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[5] That is why, as I noted earlier, "the means by which donors can use parties to circumvent base limits (absent the caps) need not rely on earmarking at all." See *supra*, at 944, n. 1. And it is why, as I also noted, the majority is wrong to frame the inquiry as whether the caps on a party's coordinated expenditures prevent circumvention by earmarking, rather than circumvention through any (including non-earmarking) means. See *ibid.*

will eventually make the money available for Smith's own use. And if the majority then protests that a candidate would not think that *quid pro quo* worthwhile because he could not be 100% certain that 100% of the money would return to him, cf. *ante*, at 924, 928, that objection would also be mistaken. Parties have substantial incentives to ensure that a candidate can use (and use directly) most of the money he raises for his joint committee—not least of which is getting a proficient fundraiser-candidate, who has procured the money in the first place, elected to office. Perhaps the party will take some amount off the top. But in the ordinary case, nowhere near enough to bring a $550,000 donation to anything like the $7,000 base limit. Which means that earmarking rules will do nothing to prevent the circumvention of base limits—and the attendant risk of corruption.[6]

Something I said before applies here too: None of this is a new insight, even if the mechanics of campaign finance are constantly evolving. See *supra*, at 949. *Colorado II* made basically the same point about the limits of earmarking rules,

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[6] The majority's only response is that *McCutcheon*, in ruling on aggregate limits, "rejected a similar circumvention argument," *ante*, at 937—but that claim way overreaches. *McCutcheon* did not, as the majority implies, find joint fundraising committees generally impervious to efforts to circumvent contribution limits. Instead, its discussion focused on a single hypothetical, offered by the District Court, about a circumvention scheme involving "illegal earmarking." 572 U. S., at 215. In that example, the donor did more than write a check to the joint committee; he also directed the party committees first receiving the money to reroute it to the candidate. See *ibid.* *McCutcheon* responded that because such directions would run afoul of the earmarking regulations, party committees were unlikely to agree to such a "transparent violation" of those rules. 572 U. S., at 215. Possibly so (though *McCutcheon* is not otherwise known for the accuracy of its predictions, see *supra*, at 950, and n. 4). But as I have just explained, no such violations are needed to utilize joint fundraising committees as a mechanism for skirting base limits and making *quid pro quo* deals. See *supra*, at 954. Nothing in *McCutcheon* holds that such earmark-free schemes do not present a circumvention—and hence a corruption—problem all on their own.

even before joint fundraising committees became so prominent. Those rules, the Court explained, can "reach only the most clumsy attempts to pass contributions through to candidates." 533 U. S., at 462. To rely on them is thus to ignore the "practical difficulty" of "combating circumvention under actual political conditions." *Ibid.* Just so. A Court serious about preventing that evasion, as *Colorado II* concluded (and as the *Colorado II* Court *was*), would refuse to treat "the earmarking provision as the outer limit of acceptable" regulation. *Ibid.*

The majority's second prophylactic reed—disclosure requirements—is even weaker. Here, the majority heralds the wonders of "modern technology," which allows "massive quantities of information [to] be accessed at the click of a mouse." *Ante*, at 927. But to what end exactly? It is good that voters can learn of the size of contributions—including substantial ones to fundraising committees. But that information does not reveal *quid pro quo* dealing, and so cannot adequately deter it. That is why this Court in *Buckley* held that although disclosure requirements were "salutary" measures, they could not possibly take the place of contribution limits. 424 U. S., at 28; see *ibid.* ("[C]orruption [is] inherent in a system permitting unlimited financial contributions, even when the identities of the contributors and the amounts of their contributions are fully disclosed"). And if disclosure cannot take the place of contribution limits themselves, it also cannot substitute for the coordinated-expenditure caps that protect those limits from circumvention. To count on disclosure to prevent corruption is as much as to give up on the goal itself.

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Which is, sad to say, what this Court does today. A quarter century ago, *Colorado II* recognized that a party's coordinated expenditures, if left unrestricted, were "tailor-made to undermine contribution limits." 533 U. S., at 464. That is even more true now than it was then. See *supra*, at 950–951. Those expenditures enable parties to funnel to candidates

oversized contributions—massively in excess of the $7,000 base limit. And with that pass-through mechanism comes the danger of *quid pro quo* corruption—as if the base limit itself were half a million dollars. Congress, consistent with the First Amendment, can hold the line at $7,000. And so too, Congress can cap the coordinated payments capable of obliterating that line. By holding otherwise, the majority ushers in untold harm.

When this Court in *McCutcheon* invalidated aggregate limits, Justice Breyer wrote in dissent: "[T]oday's decision eviscerates our Nation's campaign finance laws, leaving a remnant incapable of dealing with the grave problems of democratic legitimacy that those laws were intended to resolve." 572 U. S., at 233. I'm not sure what to call a remnant of a remnant, but that is what the Court has left today. And the result will be what Justice Breyer warned of: a legal regime increasingly unable to stop political corruption, and thus to preserve our institutions' democratic legitimacy.

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REPORTER'S NOTE

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. A list of counsel who argued or filed briefs in this case, and who were members of the bar of this Court at the time this case was argued, has been inserted following the syllabus. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

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p. 947, n. 3, line 1: "C." is inserted before "Levine"
p. 947, n. 3, line 1: "POLITICO, Aug. 4, 2017" is inserted after "Back"
p. 947, n. 3, line 4: "Politico" is changed to "POLITICO"
p. 954, line 8: "$550,00" is changed to "$550,000"